

1 ENGROSSED SENATE
2 BILL NO. 2045

By: Stanley of the Senate

3 and

4 Lowe of the House

5
6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 11-103.9, which relates to physical education
8 program requirements; requiring certain schools to
9 provide students in certain grades certain amount of
10 daily recess as a condition of accreditation;
11 allowing daily recess to be broken into segments;
12 defining term; requiring daily recess to occur
13 outdoors when permitted; removing language
14 encouraging certain amount of recess in certain
15 grades; requiring certain subject matter standards to
16 address certain plan; updating statutory language;
17 providing an effective date; and declaring an
18 emergency.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 70 O.S. 2021, Section 11-103.9, is
21 amended to read as follows:

22 Section 11-103.9. A. Except as otherwise provided for in this
23 section, the State Board of Education shall require, as a condition
24 of accreditation, that school districts provide to all students
physical education programs which may include athletics.

B. The Board shall require, as a condition of accreditation,
that public elementary schools provide instruction, for students in
full-day kindergarten and grades one through five, in physical

1 education or exercise programs for a minimum of an average of sixty
2 (60) minutes each week. The time students participate in recess
3 shall not be counted toward the sixty-minutes-per-week physical
4 education requirement. Schools may exclude from participation in
5 the physical education or exercise programs required in this
6 subsection those students who have been placed into an ~~in-house~~ in-
7 school suspension or detention class or placement or those students
8 who are under an in-school restriction or are subject to an
9 administrative disciplinary action.

10 C. The Board shall require, as a condition of accreditation,
11 that public elementary schools provide to students in full-day
12 kindergarten and grades one through five, in addition to the
13 requirements set forth in subsection B of this section, an average
14 of sixty (60) minutes each week of physical activity, which may
15 include, but not be limited to, physical education, exercise
16 programs, fitness breaks, ~~recess, and~~ classroom activities, and
17 wellness and nutrition education. Each school district board of
18 education shall determine the specific activities and means of
19 compliance with the provisions of this subsection, giving
20 consideration to the recommendations of each school's Healthy and
21 Fit School Advisory Committee as submitted to the school principal
22 pursuant to the provisions of Section 24-100a of this title.

23 D. The Board shall require, as a condition of accreditation,
24 that public elementary schools provide to students in full-day pre-

1 kindergarten, full-day kindergarten, and grades one through five, in
2 addition to the requirements of subsections B and C of this section,
3 at least thirty (30) minutes of daily recess. The daily recess
4 required by this subsection may be broken up into segments to
5 accommodate each school district's instructional day. For the
6 purposes of this section, "daily recess" means a scheduled break or
7 breaks during the school day that allow students to engage in
8 unstructured free play or physical activity. Daily recess shall
9 occur outdoors when weather and other relevant conditions permit.

10 E. The Board shall disseminate information to each school
11 district on the benefits of physical education programs and shall
12 strongly encourage districts to provide physical education
13 instruction and daily recess to students in grades six through
14 twelve. The Board shall also strongly encourage school districts to
15 incorporate physical activity into the school day by providing ~~to~~
16 ~~students in full-day kindergarten and grades one through five at~~
17 ~~least a twenty-minute daily recess, which shall be in addition to~~
18 ~~the sixty (60) minutes of physical education as required by~~
19 ~~subsection B of this section, and by allowing~~ all students brief
20 physical activity breaks throughout the day, physical activity
21 clubs, and special events.

22 ~~E.~~ F. Instruction in physical education required ~~in~~ by this
23 section shall be aligned with the subject matter standards as
24 adopted by the Board.

1 ~~F.~~ G. The physical education curriculum shall be sequential,
2 developmentally appropriate, and designed, implemented, and
3 evaluated to enable students to develop the motor and self-
4 management skills and knowledge necessary to participate in physical
5 activity throughout life. Each school district shall establish
6 specific objectives and goals the district intends to accomplish
7 through the physical education curriculum.

8 ~~G.~~ H. In identifying the essential knowledge and skills, the
9 State Board of Education shall ensure that the subject matter
10 standards for physical education:

11 1. Emphasize the knowledge and skills capable of being used
12 during a lifetime of regular physical activity;

13 2. Are consistent with national physical education standards
14 for:

15 a. the information that students should learn about
16 physical activity, and

17 b. the physical activities that students should be able
18 to perform;

19 3. Require that, on a weekly basis, at least fifty percent
20 (50%) of the physical education class be used for actual student
21 physical activity and that the activity be, to the extent
22 practicable, at a moderate or vigorous level;

23 4. Offer students an opportunity to choose among many types of
24 physical activity in which to participate;

1 5. Offer students both cooperative and competitive games;

2 6. Meet the needs of students of all physical ability levels,
3 including students who have a disability, chronic health problem, or
4 other special need that precludes the student from participating in
5 regular physical education instruction but who might be able to
6 participate in physical education that is suitably adapted and, if
7 applicable, included in the student's individualized education
8 program developed pursuant to the Individuals with Disabilities
9 Education Act (IDEA) or Section 504 Plan developed pursuant to the
10 Rehabilitation Act of 1973;

11 7. Teach self-management and movement skills;

12 8. Teach cooperation, fair play, and responsible participation
13 in physical activity;

14 9. Promote student participation in physical activity outside
15 of school; and

16 10. Allow physical education classes to be an enjoyable
17 experience for students.

18 ~~H.~~ I. The Board shall ~~adopt~~ promulgate rules to implement the
19 provisions of this section.

20 SECTION 2. This act shall become effective July 1, 2026.

21 SECTION 3. It being immediately necessary for the preservation
22 of the public peace, health, or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 26th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives